

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		16. ADMINISTERED BY CODE			
		17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
TELEPHONE NUMBER					
19. ITEM NUMBER 20. SCHEDULE OF SUPPLIES/SERVICES 21. QUANTITY 22. UNIT 23. UNIT PRICE 24. AMOUNT					
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Phones for Seven Sites

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	NAS Key West 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0002	NAVSTA Great Lakes 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0003	NAVSTA Norfolk 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0004	JEB Little Creek 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0005	NSA Mechanicsburg 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0006	NSA Philadelphia 5- YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
0007	PNYA 5 YEAR ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		

Option Line Item 1001	OPTION NAS Key West 6 MONTHS ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1002	OPTION NAVSTA Great Lakes 6 MONTHS ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1003	OPTION NAVSTA Norfolk 6 MONTHS ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1004	OPTION JEB Little Creek 6 MONTHS ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1005	OPTION NSA Mechanicsburg 6 Month ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1006	OPTION NSA Philadelphia 6 MONTH ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1007	OPTION PNYA 6 MONTH ORDERING PERIOD. INTEGRATED, SWITCHED VOICE AND DATA TELECOMMUNICATIONS SERVICES IAW PERFORMANCE WORK STATEMENT (PWS), INCLUSIVE OF TAXES, FEES AND SURCHARGES. Pricing Arrangement: Firm Fixed Price	1	Lot		

Continuation of Description

Requirements

Delivery of telephonic capabilities in support of several locations as identified in the PWS.

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Period of Performance

From 01 Feb 2027 to 31 Jul 2032

The ordering period above may include unexercised options

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Shannon Cox, NAS Key West- BCO Manager NAS Jacksonville FL Email: shannon.c.cox.civ@us.navy.mil Telephone: (904) 542-8367
0002	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Greg Powroznik, NAVSTA Great Lakes-Telecommunications Specialist Email: greg.m.powroznik.civ@us.navy.mil Telephone: (847) 688-2070
	Delivery On Or Before Delivery Date 01 Feb 2027	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES

0003	Period of Performance From 01 Feb 2027 To 31 Jan 2032		Lachana Hill, NAVSTA Norfolk- Program Management Analyst Email: lachana.j.hill.civ@us.navy.mil Telephone: (757) 400-9615
0004	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Lachana Hill, JEB Little Creek Email: lachana.j.hill.civ@us.navy.mil Telephone: (757) 400-9615
0005	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens, NSA Mechanicsburg- Telecommunication Manager Email: (215) 697-4000 Telephone: jewanna.f.owens.civ@us.navy.mil
0006	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens, NSA Philadelphia- Telecommunication Manager Email: jewanna.f.owens.civ@us.navy.mil Telephone: (215) 821-7792

0007	Delivery On Or Before Delivery Date 01 Feb 2027 Period of Performance From 01 Feb 2027 To 31 Jan 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens,, PNYA- Telecommunications Manager Email: jewanna.f.owens.civ@us.navy.mil Telephone: (215) 821-7792
Option Line Item 1001	Delivery On Or Before Delivery Date 01 Feb 2032 Period of Performance From 01 Feb 2032 To 31 Jul 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Shannon Cox, NAS Key West- BCO Manager NAS Jacksonville FL Email: shannon.c.cox.civ@us.navy.mil Telephone: (904) 542-8367
Option Line Item 1002	Delivery On Or Before Delivery Date 01 Feb 2032 Period of Performance From 01 Feb 2032 To 31 Jul 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Greg Powroznik, NAVSTA Great Lakes-Telecommunications Specialist Email: greg.m.powroznik.civ@us.navy.mil Telephone: (847) 688-2070
Option Line Item 1003	Delivery On Or Before Delivery Date 01 Feb 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Lachana Hill, NAVSTA Norfolk- Program Management Analyst Email: lachana.j.hill.civ@us.navy.mil Telephone: (757) 400-9615

	Period of Performance From 01 Feb 2032 To 31 Jul 2032		
Option Line Item 1004	Delivery On Or Before Delivery Date 01 Feb 2032 Period of Performance From 01 Feb 2032 To 31 Jul 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Lachana Hill, JEB Little Creek Email: lachana.j.hill.civ@us.navy.mil Telephone: (757) 400-9615
Option Line Item 1005	Delivery On Or Before Delivery Date 01 Feb 2032 Period of Performance From 01 Feb 2032 To 31 Jul 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens, NSA Mechanicsburg- Telecommunication Manager Email: (215) 697-4000 Telephone: jewanna.f.owens.civ@us.navy.mil
Option Line Item 1006	Delivery On Or Before Delivery Date 01 Feb 2032 Period of Performance From 01 Feb 2032 To 31 Jul 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT 1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens, NSA Philadelphia- Telecommunication Manager Email: jewanna.f.owens.civ@us.navy.mil Telephone: (215) 821-7792
	Delivery On Or Before Delivery Date 01 Feb 2032	1 Lot	Ship To DoDAAC: N70272 CountryCode: USA NCTAMS LANT

Option Line Item 1007	Period of Performance From 01 Feb 2032 To 31 Jul 2032		1518 PIERSEY ST., BLDG. MB100, NORFOLK VA 23511-2784 NORFOLK, VA 23511-2784 UNITED STATES Jewanna Owens,, PNYA- Telecommunications Manager Email: jewanna.f.owens.civ@us.navy.mil Telephone: (215) 821-7792
----------------------------------	--	--	---

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.219-16	Liquidated Damages-Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)	Mar 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.203-3	Gratuities.	Apr 1984		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)
POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	=====
Issue By DoDAAC	=====
Admin DoDAAC	=====
Inspect By DoDAAC	=====
Ship To Code	=====
Ship From Code	=====
Mark For Code	=====
Service Approver (DoDAAC)	=====
Service Acceptor (DoDAAC)	=====
Accept at Other DoDAAC	=====
LPO DoDAAC	=====
DCAA Auditor DoDAAC	=====
Other DoDAAC(s)	=====

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

=====

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		
52.247-34	F.o.b. Destination.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	Feb 2026	Deviation 2026-O0037	Feb 2026
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021

FAR Clauses Incorporated by Full Text

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day ; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 day before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52> and https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Alternate I)

(Feb 2026)

Alternate I

(Feb 2026)

Alternate I (FEB 2026) (DEVIATION 2026-O0038). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause-

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

- (1) Performed by the contractor;
- (2) Performed by the subcontractors; or
- (3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means-

- (1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
- (2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
- (3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);
- (4) The following subcontracts for services which are specifically excluded from the hourly rate: *[Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.];* and
- (5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) *Inspection/Acceptance.*

(1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. *[Insert portion of labor rate attributable to profit.]*

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) *Payments.*

(1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other direct costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: ____ [Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'".]

(2) *Indirect costs (material handling, subcontract administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: ____ [Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None'").]

(2) *Total cost.* The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable

following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 2/1/27 through 1/31/2032.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either-
- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
- (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$1,000.00 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order.* The Contractor is not obligated to honor-
- (1) Any order for a single item in excess of \$5,000,000.00;
- (2) Any order for a combination of items in excess of \$45,010,791.00; or
- (3) A series of orders from the same ordering office within 7 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.
- (End of clause)

52.216-22 Indefinite Quantity. (Deviation 2026-O0038)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 7/31/2033.
- (End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	CAP- max min and funding			10 Apr 2026
02	QASP			10 Apr 2026
03	CDR			10 Apr 2026
04	Past Performance Report Form			10 Apr 2026
05	Past Performance Info Form			10 Apr 2026
06	PWS V3	Statement of Work		15 Apr 2026
07	VOIP Phones Pricing Spreadsheet			20 Apr 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.225-7053	Representation Regarding Prohibition on Use of Certain Energy Sourced from Inside the Russian Federation.	Aug 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-O0038) (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 **Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.** (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

The Government intends to award up to seven single Indefinite-Delivery, Indefinite-Quantity (IDIQ) Contracts with Firm Fixed-Price (FFP) provisions as a result of this solicitation in accordance with FAR Part 12, FAR Part 15, and FAR Subpart 16.5. Award will be made to that offeror whose proposal represents the best value to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award multiple contract(s) based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a Technical, Past Performance, Small Business Participation Plan and Price standpoint. The Government reserves the right to award a FFP contract to other than the lowest priced offeror; award a FFP contract without discussions; or award a FFP contract after discussions, whichever is in the best interest of the Government.

The Government intends for a single contractor to perform the services in each service location (i.e. multiple contractors will not be performing in the same service location). The contractor chosen for each service location will be the responsible offeror whose proposal represents the best value after evaluation in accordance with the factors in the solicitation. The offeror's proposal shall be in the form prescribed by, and shall contain a response to each of the areas identified in Section L.

An offeror may be chosen for multiple service locations, if determined to be the best value for that particular location (i.e. each location is not required to have a different contractor from the others). In such cases, an offeror may receive multiple contracts for multiple service locations; or multiple service locations may be covered by a single contract awarded to a single vendor, if that vendor was chosen for those locations.

QUESTIONS: Offerors may submit questions regarding clarification of solicitation requirements to Jim Keegan and Samantha Ballance via email at james.p.keegan7.civ.@us.navy.mil and samantha.a.ballance.civ@us.navy.mil. It is requested that all questions be received by **29 April 2026 by 1300 Eastern Time**, as time may not permit responses to questions received after that date to be prepared and issued prior to receipt of proposals.

SUBMISSION OF PROPOSALS

- (1) Proposals shall be submitted electronically no later than the due date of the solicitation to Jim Keegan and Samantha Ballance via email at james.p.keegan7.civ.@us.navy.mil and samantha.a.ballance.civ@us.navy.mil. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of offerors proposals shall be compatible with the current release of Adobe Acrobat and Microsoft Office Suite version 2016. The offeror shall be responsible for ensuring that their electronic proposals are virus free.
- (2) Proposals shall specify which service location(s) the offeror is bidding on (if bidding on multiple locations, then specify which ones):

Location
Norfolk
PNYA
Mechanicsburg
Philadelphia
Little Creek
Key West

Great Lakes

If bidding on multiple locations, the price proposal must provide complete pricing for each location.

(3) Volumes I & II - Technical Approach and Past Performance

These volumes shall address Technical Approach and Past Performance and include all information required for proposal evaluation. These volumes of the proposal shall exclude any pricing information. Proposals shall include the following legend on each page:

Source Selection Information
See FAR 2.101 and FAR 3.104

(4) Volume III - Small Business Participation Plan (all Offerors) and Volume V - Small Business Subcontracting Plan (other than small business offerors only)

These volumes shall address the Small Business Participation Approach and Small Business Subcontracting Plan (if applicable) include all information required for proposal evaluation. Each page of each copy shall be affixed with the following legend:

Source Selection Information
See FAR 2.101 and FAR 3.104

(5) Volume IV - Price Proposal

This volume shall include the completed solicitation documents and a complete and detailed price breakdown with all supporting information. If bidding on multiple service locations, this volume must contain complete pricing for each location. Each page of each copy shall be affixed with the following legend:

Source Selection Information
See FAR 2.101 and FAR 3.104

REQUIREMENTS FOR PROPOSAL CONTENT

The offer should contain the following items in addition to other information required by this solicitation. The cover page should indicate the following:

- Title of the proposal
- Volume Number (I, II, III, IV, or V)
- Proposal Category (Factor/Sub-factor)
- Request for Proposal Number
- Name and Address of Offeror, CAGE Code, EUI number, and applicable Tax I.D. Number (TIN)
- Point of Contact name, telephone number, and email address
- Proposal valid until performance start date
- Name the service location the offeror is proposing on (see table above)

Proposals shall be prepared in five (5) separate and distinct volumes:

- **Volume I - Factor I: Technical Approach**
- **Volume II - Factor II: Past Performance**
- **Volume III - Factor III: Small Business Participation Plan (all offerors)**
- **Volume IV - Factor IV: Price**
- **Volume V - Small Business Subcontracting Plan (other than small business offerors only)**

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

1. Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFP. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of understanding of cost consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the offeror shall refer to the initial discussion and identify its location within the submitted proposal.

2. Proposal Page Limitations

Volumes I, II, & III Non-Price Proposal and Volume V Small Business Participation Plan (and, if applicable, Small Business Subcontracting Plan) - The following page limitations are established:

Title	Proposal Quantities	Page Limit*
Factor I: Technical	1 Electronic Submission	12 Pages
Factor II: Past Performance	1 Electronic Submission	12 Pages
Factor III: Small Business Participation Plan	1 Electronic Submission	No limit
Small Business Subcontracting Plan	1 Electronic Submission	No limit

All submission and attachments shall be in Microsoft Office Suite. Submissions are page limited to the maximum number of pages as defined above. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8-point size type or larger. Each "page" is defined as one sheet, 8 1/2 "x 11", with at least one inch margins on all sides, using a font with a font size of 12 or greater (e.g., "Times New Roman" style with 12-point font), and shall be in portrait orientation. Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, compliance matrix, table of contents, tabs, and dividers.

Volume IV - Price Proposal - is not page limited.

Title	Proposal Quantities	Limit*	Software
Factor IV, Price	1 Electronic Submission	No limit	Microsoft Excel

The Price Proposal is not page limited; however, the Price Proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

Pages submitted in excess of the page limitations described within will not be evaluated.

Volume I, Factor I - Technical Approach

The offeror shall provide a technical approach which demonstrates an understanding of the requirement and details how the offeror intends to perform the required tasks and provide the specific services and requirements identified in PWS sections 3.0 and 4.0 and one or more of the following sections: 3.1.1, 3.2.1, 3.1.3, 3.1.4, 3.1.5, 3.1.6, 3.1.7.

Volume II, Factor II - Past Performance

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts performed within five (5) years of the solicitation issuance date. Those contracts must reflect at least one year of completed performance within the five years prior to the closing date of this solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts within the past (5) five years from the solicitation closing date. In addition, performance data will only be assessed for those references demonstrating at least one year of completed performance within the five (5) years prior to the closing date of this solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation. For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an ID/IQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. If an offeror submits the IDIQ contract, FSS contract, or BPA itself as a reference, then the offeror must identify: a) the total number of orders actually awarded to the offeror during the ordering period in the past five (5) years from the solicitation closing date; and b) the total dollar amount of those orders. The total dollar amount shall be the sum of the orders actually awarded, not the contract maximum or ceiling. Orders is defined as either delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an ID/IQ or BPA or Federal Supply Schedule contract. Orders must also meet the recency requirements stated above: each order must have been performed within five (5) years of the solicitation closing date. If an offeror submits an IDIQ contract, FSS contract, or BPA itself as a reference, the ordering period must be at least one (1) year in length and any ordering period prior to the five-years before the solicitation date will not be considered. If an IDIQ contract, FSS contract, or BPA itself is submitted as a reference, the offeror shall state the specific experience claimed from the orders (i.e. the offeror shall identify what work was actually completed on the orders and the relevance to this solicitation, as opposed to generically stating that orders were merely awarded). A Past Performance example that does not provide the level of detail required may not be evaluated.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in section L (within five years and must reflect at least one year of completed performance prior to the closing date of this solicitation). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference will may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The references will be evaluated in the **aggregate** in order to allow the offerors who may not have the entire scope and magnitude of the requirement under one individual contract to still be evaluated for quality if past performance with the full scope and magnitude of the requirement can be demonstrated within the allotted number of references as described above.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete the Past Performance Report Form attached to the solicitation and e-mail the completed survey form directly to James Keegan and Samantha Ballance via email to james.p.keegan7.civ@us.navy.mil and samantha.a.ballance.civ@us.navy.mil by the DUE DATE OF THIS SOLICITATION. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

Volume III, Factor III- Small Business Participation Plan

All offerors, both large and small businesses, are required to provide a Small Business Participation Plan responding to the elements below:

- The extent to which small business concerns are specifically identified;
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones);
- The complexity and variety of the work small firms are to perform;
 - o Past performance of the offeror in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan;

- When subcontracting possibilities existed on the contracts submitted by the offeror in the Past Performance volume, address whether or not the offeror awarded subcontracts to small business concerns, veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns, and women-owned small business concerns to the fullest extent consistent with efficient contract performance.
- If utilizing small businesses in current or prior contracts was not practicable, the offeror shall explain why.
- Provide any information substantiating the offeror's track record of utilizing small business on past contracts in detail. Include, at a minimum, two most recent Summary Subcontract Reports (SSR) from eSRS.

- The extent of participation of small business concerns in terms of the value of the total acquisition.

Small Business Subcontracting Plan (for other than small businesses only)

Each offeror that is not a small business shall provide a Small Business Subcontracting Plan that contains all elements required by FAR clause 52.219-9 Alt II (Deviation), and as supplemented by DFARS clause 252.219-7003, by **the closing date and time of this solicitation. The small business subcontracting plan is not an evaluation factor and will not be evaluated as part of the formal source selection process.** Offerors are permitted to submit a master subcontracting plan as long as it is created in accordance with FAR 19.701 and FAR 19.704(b). Small Business Subcontracting Plans are not required from offerors that qualify as small business concerns under NAICS code 517111 with a size standard of 1,500 employees.

It is the goal of this solicitation that prime contractors subcontract with small businesses to the maximum extent practicable. For other-than-small prime contractors, the Small Business Subcontracting Plan goals shall be expressed in terms of whole dollars and percentages based on total planned subcontracting dollars. Of the total planned subcontracting dollars, the Small Business Subcontracting Plan shall include goals for small businesses, small disadvantaged businesses, woman-owned small businesses, HUBZone small businesses, veteran-owned small businesses, and service-disabled veteran-owned small businesses. The Government will consider prior achievement of small business subcontracting plan goals as well as the proposed dollar values and percentages related to this solicitation.

Volume IV, Factor IV - Price

The Price Proposal shall include the completed solicitation documents. The price proposal shall include all elements of price, and such other price information considered appropriate to support the proposal. Vendors are required to complete the Price Spreadsheet Attachment, and any information such as commercial pricing listings or any information, which can be used in evaluating the submitted price quote. The pricing information shall be completed in accordance with the following:

- Completed CLINs completed by the offeror along with the completed Attachment XII "Pricing Spreadsheet". Using "Attachment XII "Pricing Spreadsheet" to the RFP offerors must submit fully burdened monthly rates and extended prices (i.e. fees, taxes) for each ordering period identified on the spreadsheet and for the 6-month option period pursuant to FAR 52.217-8. The Contractor's price shall be inclusive of all the Contractor's direct costs, indirect costs, and profit and shall include all costs associated with providing the items/services described in the Performance Work Statement and the solicitation. For the purpose of preparing a price proposal, the offeror shall assume that the period of performance consists of a 5-year ordering period, and FAR clause 52.217-8, Option to Extend Services up to six months, as established in the Schedule.
- The proposed rates shall be provided by the offeror in Attachment XII of the solicitation and will be incorporated into the resultant contract as the ceiling rates for each category. Failure to include a rate for all of the provided categories within Attachment XII may deem an offeror to be non-responsive.
- A completed and signed page 1 of the solicitation and a completed and signed page 1 of any amendments;
- Unless completed in SAM, RFP Section, "Representation, Certification and Other Statements of Offerors" completed by the offeror in accordance with FAR 52.204-8, FAR 52.204-24, FAR 52.204-26 and DFARS 252.204-7007 Alt. A.
- All price and price supporting information shall be contained in the price submittal. No price or pricing information shall be included in any other volume including cover letters. Offerors are responsible for submitting sufficient information to enable the Government to fully evaluate their price proposal.
- The offeror shall not deviate from the government provided pricing spreadsheet identified in Attachment XII "Pricing Spreadsheet" of the Solicitation.
- Offerors submitting partial pricing information shall be ineligible for award. The monthly rate prevails if a discrepancy exists between the monthly rate and the extended price. The Contractor's price shall be inclusive of all the Contractor's direct costs, indirect costs, and profit and shall include all costs associated with providing the services described in the Performance Work Statement and the solicitation.

- Note on Task Order Pricing: The prices or labor rates that are in effect on the date any task order is issued by the Government shall apply for the full period of performance of the task order. If the task order also includes option periods, the rates that are in effect on the date the option period is exercisable shall apply for the full period of performance of the option period.
- The Government reserves the right to issue task orders utilizing more or less items included in the spreadsheet. The total of all Orders issued within the established ordering period will not exceed the ceiling amount set per contract location contained within the solicitation.
- Each firm-fixed-price task order will ultimately be awarded at a negotiated amount, to be divided equally into monthly amounts (monthly unit of issue) for accomplishment of the Task Order PWS, using the rates established in Attachment XII "Pricing Spreadsheet" as the basis to determine the negotiated Task Order price.

The total proposed price shall represent the offeror's firm-fixed-price for performance of all of the solicitation's requirements. For the purpose of preparing a price proposal, the offeror shall assume that the ordering period shall be from February 1, 2027 to January 31, 2032, or if the FAR clause 52.217-8 option is exercised, July 31, 2032.

A firm-fixed-price is not subject to any adjustment on the basis of the contractor's cost experience in performing the contract. The Government shall not be responsible for compensating the Contractor for any costs tied to solicitation requirements but not factored into the proposed prices, either by the Contractor's intention or by mistake.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

See Addendums 52.212-1 and 52.212-2

Technical and past performance, when combined, are significantly more important when compared to price.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

The Government intends to award up to seven Indefinite-Delivery, Indefinite-Quantity (IDIQ) Contract(s) with Firm Fixed-Price (FFP) provisions, as a result of this solicitation in accordance with FAR Part 12, FAR Part 15, and FAR Subpart 16.5. One contractor per service location will be selected whose proposal represents the best value to the Government under the selection criteria set forth in this solicitation. The evaluation will consist of Factor I: Technical Approach, Factor II: Past Performance, Factor III: Small Business Participation Plan, and Factor IV: Price. The evaluation of proposals will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within the Non-Price Proposal, Factor I - Technical Approach is more important than Factor II - Past Performance, and Factor II is more important than Factor III - Small Business Participation Plan.

An offeror may be chosen for in multiple service locations, if determined to be the best value for that particular location (i.e. each location is not required to have a different contractor from the others). In such cases, an offeror may receive multiple contracts for multiple service locations; or multiple service locations may be covered by a single contract awarded to a single vendor, if that vendor was chosen for those locations.

Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of unacceptable. Offerors should be aware that a complete understanding as to technical, price, and all terms and conditions of the proposed contract must exist between the offeror and the Government at the conclusion of discussions, if held. Material changes to proposals submitted in any final proposal revisions, if made, may not be subject to further exchange, and may render the proposal unacceptable to the Government. All offerors and team member/subcontractor information must be incorporated into one coherent proposal to be considered complete.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a offeror's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offeror. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, proposals, price could become the factor in determining which offeror shall receive the award.

All proposals will be reviewed for timeliness. Timely proposals will also be reviewed for compliance to the solicitation. If the proposal is not compliant with the material terms of the solicitation, it may not be evaluated and the offeror will be notified that the proposal is non-responsive.

Factor I: Technical Approach

The purpose of the technical factor is to assess the offeror's proposed approach to satisfy the Government's requirements. The technical rating reflects the degree to which the proposed approach meets or does not meet the threshold performance or capability requirements. The risk associated with the offeror's technical approach will also be assessed. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to the requirements of the solicitation may cause disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

The technical/risk rating includes consideration of risk in conjunction with the significant strengths, strengths, weaknesses, significant weaknesses, and deficiencies in determining technical ratings. Combined technical/risk evaluations will utilize the combined technical/risk ratings listed in the Technical Ratings Table (Table 1) and the risk descriptions in the Risk Descriptions Table below (Table 2). The offeror will receive a separate technical/risk rating for each service location that the offeror proposed on. That technical rating will be from Table 1. Note that a separate and distinct rating for risk will not be assigned. The risk descriptions are provided in the Risk Descriptions Table below in order to define the risk terms that are utilized in the combined technical/risk rating table (Table 1) and to describe the level of risk assessed when establishing the combined technical risk /rating.

The offeror's technical approach will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates an understanding of, and capability to successfully accomplish the tasks/requirements listed above in Factor I- Technical Approach, in section L of the solicitation.

Note: A rating of "Marginal" for any Technical factor means that the offeror's proposal is not awardable for that service location without a change or changes to the offeror's proposal. A proposal which includes a "Marginal" rating is not eligible for award on that service location if award is made on initial offers. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is appropriate and said exchange is conducted, and as such, an offeror that receives a rating of "Marginal" in the technical factor is not awardable and will not be further evaluated for that service location unless discussions are conducted. Offerors receiving a rating of "Unacceptable" for any Technical factor will not be considered for an award and will not be further evaluated for the service location receiving an Unacceptable rating.

If an offeror receives a "Marginal" or "Unacceptable" in one service location, but was "Acceptable" or better in another service location that was bid on, the offeror may still be considered for those other location(s) where the proposal was at least Acceptable.

Factor II: Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years of the issuance date of this solicitation. Evaluation will focus only on work experience already performed. Work yet-to-be performed, and work prior to the last five years, will not be considered. In addition, performance data will only be assessed for those references demonstrating at least one year of completed performance prior to the closing date of the solicitation within the past 5 years.

Past Performance Relevancy: Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement as detailed in table 3 below. The following definitions will apply to this evaluation:

- **Scope:** Experience in the areas described in the PWS.
- **Magnitude:** The measure of the similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation. In addition, performance data will only be assessed for those references demonstrating at least one (1) year of completed performance prior to the closing date of this solicitation. If an offeror submits an IDIQ contract, FSS contract, or BPA itself as a reference, only the dollar value of orders actually awarded in the past five (5) years will be considered when assessing magnitude. The contract maximum or ceiling will not be considered in the magnitude assessment. The offeror's past performance reference(s) will be assessed against the magnitude of the location(s) proposed.

The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. References determined to be "Not Relevant" will not be further considered. Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevance.

The aggregate of each offeror's past performance references in terms of scope and magnitude will result in the assessed overall relevance of that offeror's past performance, and will result in a relevancy rating as outlined in Table 3 (Past Performance Relevancy Ratings Table), below.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in the table 4 below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed by the solicitation closing date will not be considered.

If the offeror's aggregated past performance is determined to be not relevant as defined in the solicitation, then the quality of the offeror's past performance will not be evaluated through a confidence assessment and the past performance factor will be rated as "Neutral Confidence." If an offeror's aggregate past performance is determined to be relevant, then each past performance reference under the offeror's past performance submission that contributed to the determination of aggregate relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the offeror's performance under that reference. The quality of performance on contract references that are rated Not Relevant is not evaluated even when the overall past performance is found to be relevant.

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the Federal Awardee Performance and Integrity Information System (FAPIS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the RFP. In determining the rating for the past performance evaluation sub-factor, the Government will give greater consideration to the contracts which the Government assess as most relevant to the RFP.

NOTE: A rating of "Limited Confidence" for past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal which includes a "Limited Confidence" rating is not eligible for award if award is made on initial offers. Offerors that receive a "Limited Confidence" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is

appropriate and said exchange is conducted. Offerors receiving a rating of "No Confidence" for the past performance factor will not be considered for an award and will not be further evaluated. Offerors rated as "Neutral Confidence", while not be evaluated favorably or unfavorably on past performance, may not represent the most advantageous proposal to the Government as "Satisfactory Confidence, or higher, past performance rating may be determined to offer better value.

Factor III: Small Business Participation Plan (all offerors)

The contracting officer will evaluate each offeror's Small Business Participation Plan as follows:

- The extent to which small business concerns are specifically identified
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones)
- The complexity and variety of the work small firms are to perform
- Past performance of the offeror in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan
- The extent of participation of small business concerns in terms of the value of the total acquisition

The offeror's small business participation plan factor will be assigned a rating shown in the "Small Business Participation Plan Ratings Table" below (see Table 5).

Small Business Subcontracting Plan (for other-than-small businesses only). This is **NOT** an evaluation factor. The Small Business Subcontracting Plan requirement is mandatory for award to an other than small business. Each other than small business offeror's Small Business Subcontracting Plan will be reviewed in accordance with FAR clause 52.219-9 Alt II (Deviation), Small Business Subcontracting Plan. The plan will be reviewed for acceptability. The apparently successful offeror shall negotiate an acceptable subcontracting plan with the contracting officer prior to award. Failure to negotiate an acceptable subcontracting plan will make the offeror ineligible for award. Negotiation of the small business subcontracting plan is not considered discussions and will only occur with the apparent successful offeror. The plan will be incorporated into any resultant contract.

Factor IV: Price

Price Proposals will be evaluated based on price reasonableness in accordance with FAR 15.404-1(b), Price Analysis. The Government may evaluate any and all information submitted by the offeror to support the reasonableness of the prices proposed. The method of evaluation used by the contracting officer is solely within the discretion of the contracting officer.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which offeror will receive the award.

If the offeror's proposal is determined to be unacceptable in any of the non-price evaluation factors, the price proposal will not be evaluated by the contracting officer. The Government reserves the right to award the contract to other than the lowest priced offeror.

Offeror shall complete the Attachment XII "Pricing Spreadsheet". Using "Attachment XII "Pricing Spreadsheet" to the RFP offerors must submit fully burdened monthly rates and extended prices (i.e. fees, taxes) for each ordering period identified on the spreadsheet and for the 6-month option period pursuant to FAR 52.217-8. The Contractor's price shall be inclusive of all the Contractor's direct costs, indirect costs, and profit and shall include all costs associated with providing the items/services described in the Performance Work Statement and the solicitation. For the purpose of preparing a price proposal, the offeror shall assume that the period of performance consists of a 5-year ordering period, and FAR clause 52.217-8, Option to Extend Services up to six months, as established in the Schedule.

The offeror shall not deviate from the government provided pricing spreadsheet identified in Attachment XII "Pricing Spreadsheet" of the Solicitation.

Offerors submitting partial pricing information shall be ineligible for award. The monthly rate prevails if a discrepancy exists between the monthly rate and the extended price. The Contractor's price shall be inclusive of all the Contractor's direct costs, indirect costs, and profit and shall include all costs associated with providing the services described in the Performance Work Statement and the solicitation.

Written Notice

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Rating Tables

TABLE 1: TECHNICAL APPROACH - COMBINED TECHNICAL/RISK RATING TABLE

Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

TABLE 2: TECHNICAL APPROACH - RISK DESCRIPTIONS TABLE

Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	

pta ble	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.
------------	--

DEFINITIONS:

Strength - an aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake)

TABLE 3: PAST PERFORMANCE RELEVANCY TABLE

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

TABLE 4: PAST PERFORMANCE CONFIDENCE ASSESSMENT TABLE

Rating	Description

Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will be successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

TABLE 5: SMALL BUSINESS PARTICIPTION PLAN RATINGS TABLE

Adjectival Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Unacceptable	Proposal does not meet small business objectives.

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.216-27	Single or Multiple Awards.	Oct 1995		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52> and https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)	(Feb 2026)	Alternate A Deviation 2026-O0043	(Feb 2026) (Feb 2026)
--------------	--	------------	----------------------------------	--------------------------

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.215-7992 Only One Offer. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification].

==

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)